# GEN 1.2 ENTRY, TRANSIT AND DEPARTURE OF AIRCRAFT

## 1.2.1. General

1.2.1.1 The Republic of Cabo Verde exercises complete sovereignty over its airspace.

1.2.1.2 The Republic of Cabo Verde airspace is the airspace over the territory of the Cabo Verde archipelago and the adjacent territorial waters, being the Cabo Verde sovereignty a consequence of international legislation and the established international agreements.

1.2.1.3 All flights into, from or over the territory of the Republic of Cabo Verde, and the landings or departures in or from such territory shall be carried out in accordance with the under mentioned regulations, which shall apply on a reciprocal basis.

1.2.1.4 Aircraft landing or departing from the territory of the Republic of Cabo Verde must first land or finally depart from an international Airport (see **AD 1.3** Index to Aerodromes and Heliports).

Landings at aerodromes are subject to prior permission, and enquiries shall be addressed to the CIVIL AVIATION AGENCY (AAC) via http://siga.aac.cv/ext/fpr

1.2.1.5 The filing of a flight plan with the indications of the airport where landing or departure is to take place shall be a prerequisite.

1.2.1.6 Aircraft landing or departing from Level 3 Coordinated Airports (GVBA, GVNP and GVAC), shall submit a slot request prior to operate, referred on **ENR 1.9.3.3**.

## 1.2.2. Scheduled flights

1.2.2.1 General

For regular International Scheduled Flights operated by foreign airlines into or in transit across the Republic of Cabo Verde, the following requirements must be met:

1.2.2.1.1 Over flights or Non - traffic Stops

The over flights or landings for non - traffic purposes can be performed if the airline has been designated under a bilateral agreement signed by the Republic of Cabo Verde or under the international Air services Transit Agreement, provided that the State in which the aircraft is registered is a part of either agreement. It is further required that the over flights or landings are made in accordance with the timetable to, and approved by CIVIL AVIATION AGENCY (AAC).

1.2.2.1.2 Traffic Stops

1.2.2.1.2.1 Landing for traffic purposes require the airline to have been designated pursuant to a bilateral agreement signed by the Republic of Cabo Verde and the State in which the aircraft is registered.

1.2.2.1.2.2 Pending the signature of a bilateral agreement, the airline may obtain a temporary permit for the purposes mentioned in **GEN 1.2.2.1.1** and **GEN 1.2.2.1.2** in case the matter must be dealt with through diplomatic channels.

## 1.2.3. Non-scheduled flights

1.2.3.1 Categories of non - scheduled flights

1.2.3.1.1 For the purpose of authorisation, the non - scheduled flights fall into the following categories:

1.2.3.1.1.1 Single flights, when performed in a number not exceeding one per month per operator, in both directions.

1.2.3.1.1.2 Short series of flights, when performed in a number not exceeding four per month per period of two successive calendar month, per operator or group of operators.

1.2.3.1.1.3 Long series flights, when performed in a number not exceeding the maximum established for the short series of flights, in accordance with the remaining elements of the shorts series definition.

1.2.3.1.2 When required under these regulations, permission for non - scheduled flights shall be given by CIVIL AVIATION AGENCY (AAC), in the remaining cases.

1.2.3.1.3 Applications and notifications in these regulations shall be addressed to CIVIL AVIATION AGENCY(AAC).

1.2.3.1.4 CIVIL AVIATION AGENCY (AAC) may require the operator to provide any additional information on the flights referred to in **GEN 1.2.3** and prohibit such flights when they impair scheduled air services.

1.2.3.1.5 Subject to the maximum time limits established under **GEN 1.2.3.1.1** of these regulations, notifications and applications for non - scheduled flights, as well as any alteration for their operating conditions, shall be sent to the CIVIL AVIATION AGENCY (AAC) as far in advance as possible for reasons of safety and facilitation and also to ensure a more advanced reply.

1.2.3.1.6 Applications for non - scheduled flights shall be examined having regard to observance of the provisions of these regulations and other technical, financial and operational conditions.

1.2.3.1.7 Permission for non - scheduled flights by foreign operators may depend on reciprocal treatment being given to Cabo Verde operators.

1.2.3.1.8 Except in the case of humanitarian and emergency flights, a foreign carrier wishing to start non - scheduled flights into and out of The Republic of Cabo Verde territory may be requested to meet the following requirements:

a) To be registered in the CIVIL AVIATION AGENCY (AAC) as an operator authorised to perform non - scheduled flights.
b) To have filed with the CIVIL AVIATION AGENCY (ACC) a bank guarantee issued by a Cabo Verde bank for the purpose of insuring not only the fulfilment of these obligations, including the obligations assumed towards his passengers under the charter contract, but also the payment of fees and other charges for which he is responsible.
c) To have filed a certificate of liability for damages to passengers, baggage and cargo or to third parties on the surface.

1.2.3.1.9 The CIVIL AVIATION AGENCY (AAC) may refuse permission for non - scheduled flights where the aircraft charterer does not meet the above conditions or does not comply with the provisions of these regulations.

1.2.3.1.10 The CIVIL AVIATION AGENCY (AAC) may cancel permissions already granted to an infringing operator or prohibit temporary or permanently, from flying into or out The Republic of Cabo Verde territory.

1.2.3.1.11 The CIVIL AVIATION AGENCY (AAC) shall be responsible for enforcement of these regulations through officers appointed for the purpose, who shall have access to outgoing

aircraft, places where tickets are sold or checked and the hotels or similar establishments.

1.2.3.2 Description of types of charters

1.2.3.2.1 For the purposes of this document the three basic types of charters are categorised as follows:

a) Group charters;
b) Inclusive tour charters;
c) Single entity (or own use) charters;
d) Other specialised charters and concepts are also described herein.

1.2.3.2.2 Groups charters are divided into two categories i.e. affinity and non affinity group charters.

1.2.3.2.2.1 Affinity group charters are based upon the rules established by IATA in Resolution 045 which stipulates that, to be eligible, a group must have principle purposes, aims and objectives other than travel sufficient affinity existing prior to the application for charter transportation to distinguish it and set it apart from the general public. Further more, the group may not exceed 50 members. The entire capacity of the aircraft must be chartered, although more than one charterer can be involved, in that case, not more than three groups of only one nature (affinity groups) may be carried on the same flight, provided that each group consists of not less than forty participants.

1.2.3.2.2.2 Non affinity group charters were introduced by a number of North American and European States pursuant to the conclusions of the Ottawa Declaration in 1972. These charters are mainly termed as advance booking charters. The rules governing non affinity charters are that the full capacity of the aircraft be chartered, and that each charterer contract for at least forty seats, and that passengers book at least sixty days in advance. The ABC (the advance booking charter) price is a fixed price set by the organizer.

1.2.3.2.3 Inclusive tour charters which may be offered to the members of the general public by a tour operator for a round trip which includes accommodation and other ground arrangements. The entire capacity of the aircraft is chartered and the price is set by the tour operator.

1.2.3.2.4 Single entity or (own use charters) are permitted when a private person or corporation charters an aircraft for his or its own use for the carriage of freight or passengers, on condition that passengers do not share in the costs either directly or indirectly. Such charters are used increasingly as part of sales incentive programmes.

1.2.3.2.5 Specialised charters include mainly:

a) Humanitarian or emergency needs charters;
b) Passenger taxi - class charters;
c) Student charters;
d) Special event charters;
e) Migrant worker charters;
f) All - cargo charters.

1.2.3.2.6 Humanitarian charters for emergency needs charters are self explanatory and refers to aircraft chartered for the purposes of meeting humanitarian or emergency needs and calls for special treatment of such flights.

1.2.3.2.7 Taxi - class passenger charters refer to aircraft chartered for passenger flights of the occasional charter on request provided that the aircraft does not have a seating capacity more than six passengers.

1.2.3.2.8 Student or study groups charters may be operated when the entire capacity of the aircraft is chartered for the carriage of full time students at a recognised establishment of higher education, and sponsored by a recognised institution of students association, with the following age limitations:

a) Students up to the age of 30 years undergoing a full time course of study at a university or other establishments of higher education;
b) Scholars between the age of 16 and 22 years in full time attendance for a minimum of a full school year at a recognised educational establishment;
c) Any number of groups may be carried on the aircraft, provided that each group consists of a least 40 student participants;
d) Members on the teaching staff or other persons as leaders of a group of students scholars;
e) Wives and husbands of eligible students, scholars or leaders as well as their dependant children up to the age of 18 years;
f) Past students and scholars up to 31 December of the year in which they completed their courses;
g) The declaration form in **GEN 1.2.3.4** must be submitted to the CIVIL AVIATION AGENCY(AAC).

1.2.3.2.9 Special events charters are for the carriage of one or more groups to attend or participate in special events of a religious, sporting, cultural, social, professional or other nature. The aircraft can only be operated to the country where the special event takes place and the duration of the stay is related to the duration of the event.

1.2.3.2.10 Migrant worker charters may be considered for the carriage of migrant workers. The aircraft can only be operated to the places of destination where the migrant workers will be radiated.

1.2.3.2.11 All cargo charters by forwarders and consolidators are permitted to operate such flights with the share of the aircraft capacity by a number of consignors or consignees. It is a general practice to prohibit the mixed carriage of cargo and passengers on a charter flight.

1.2.3.2.12 In defining other concepts in the various types of charters generally permitted, it is necessary to outline some special concepts that apply to the operation of charters. They involve the so called split - charters leading to the right for more than one chartering entity to share or split the capacity of a chartered aircraft. Normally the permission for such charters involves a contract of at least 40 seats, with the number of groups being limited to 3. These split charters may involve the following arrangements consisting of intermingling or mixed charters. The commingling designates the carriage of more than one type of charter on a split charter flight for instance, advance booking charter groups student charter, etc. The intermingling allows split charter groups which have flown together on the outward leg of a journey to return on a different date on a different aircraft. The mixed charter involves a charter operation whose cost is borne partly by the charterer and partly by the participants, as opposed to a pro rata charter. Finally, it should be noted that in some cases it is regarded as a charter or as a series of charters when the so called wet lease, corresponding to an aircraft leased with the crew.

1.2.3.3 Procedures

1.2.3.3.1 Non scheduled over flights or Non - traffic Stops

1.2.3.3.1.1 Aircraft registered in ICAO States

The operator of an aircraft registered in any ICAO contracting State may carry out a non - scheduled flight or a series of such flights in transit across or make non - traffic stops in the territory of The Republic of Cabo Verde without the necessity of obtaining prior permission, subject however to reciprocal treatment being granted to Cabo Verde aircraft in the country of the operator. Failing this, the procedure set forth under **GEN 1.2.3.3.1.2** below shall apply. The flight plan for the above operations shall be regarded as sufficient

prior notification, provided that it contains the details listed in **GEN 1.2.3.3.1.3**

1.2.3.3.1.2 Aircraft registered in Non - ICAO States

For aircraft listed in any State not a member of ICAO, the operations mentioned under **GEN 1.2.3.3.1.1** require prior permission, which must be applied for through diplomatic channels. Applications must contain the details listed in **GEN 1.2.3.3.1.3**.

1.2.3.3.1.3 The following information is required for non - scheduled overflights or non traffic stops:

a) Name of operator
b) Type of aircraft and registration marks
c) Date and time of arrival and departure from the airport concerned
d) Itinerary
e) Purpose of the flight, nature and amount of cargo carried on board

1.2.3.3.2 Traffic Stops

1.2.3.3.2.1 General

a) For the purpose of these regulations, non - scheduled flights are categorised and defined in **GEN 1.2.3.1** hereto.
b) Non - scheduled operators may be requested by AAC to produce evidence, in the form of a certificate of competence, that their international operations are conducted in accordance with the laws and regulations of the State of registry of the aircraft.

1.2.3.3.2.2 Aircraft registered in ICAO States

a) If the operator of an aircraft registered in any ICAO contracting State intends to perform a non - scheduled flight or series of such flights into Cape Verde for the purpose of loading or off - loading of passengers or cargo, he may do so in accordance with the procedures as prescribed in paragraphs b) through to f).
b) Single Entity, Humanitarian or Emergency needs or Passenger Taxi Flights.

   These flights, are referred to in **GEN 1.2.3.2.4**, **GEN 1.2.3.2.6** and **GEN 1.2.3.2.7** and may be performed without the necessity of obtaining a prior notification. Prior notification to the CIVIL AVIATION AGENCY(AAC) is, however, required and must contain the details listed below, which shall be applied at least one working day before the intended landing.

   The following information is required for non - scheduled traffic stops:

   a) Name of operator
   b) Type of aircraft and registration marks
   c) Date and time of arrival and departure from the Cabo Verde airport concerned
   d) Place or places of embarkation or disembarkation abroad, as the case may be, passengers and / or freight
   e) Purpose of flight and number of passengers and / or the nature and amount of freight
   f) Name, address and business of charterer, if any

   ***Note:*** *The operator may be required to submit such additional information as is deemed necessary for the consideration of the request.*

c) Other General Charter flights

   For other general charter flights not covered by paragraph b prior authorisation from the CIVIL AVIATION AGENCY (AAC) is required and must contain the details listed in **GEN 1.2.3.4**, 1 - 12 of these regulations. Exceptions made to the affinity, non - affinity (advance booking), inclusive tours for student charters, which are treated in the following paragraphs, the authorisation to perform a non - scheduled flight or a series of flights, in the condition referred to in paragraph d shall be applied at least two working days before the intended landing.

d) Affinity Group Charters

   For these flights, designated in **GEN 1.2.3.2.2.1** to these regulations, the application referred to in paragraph d shall be applied to CIVIL AVIATION AGENCY (AAC) not less than 30 days before the date of flight accompanied by:

   i. Declaration from chartering organisation made in accordance with **GEN 1.2.3.4**;
   ii. List of participants.

e) Non - affinity Group Charters

   For flights, defined in **GEN 1.2.3.2.2.2** to these regulations, the applications referred to in paragraph d) shall be applied to CIVIL AVIATION AGENCY (AAC) not less than 30 days before the date of the flights accompanied by:

   i. Declaration in a form similar to that of **GEN 1.2.3.4** hereto:
   ii. List of participants.

f) Inclusive Tour Charters

   For these flights, defined in **GEN 1.2.3.2.3** to these regulations, the applications referred to in paragraph c shall be applied to the CIVIL AVIATION AGENCY (AAC) not less than 30 days before the date of the flights accompanied by a list of participants.

1.2.3.3.2.3 For these flights, defined in **GEN 1.2.3.2.3** for these regulations, the application referred in paragraph c shall be applied to the CIVIL AVIATION AGENCY (AAC) not less than 30 days before the date of the flights accompanied by:

a) Declaration in a form similar to that of **GEN 1.2.3.4** hereto;
b) List of participants.

1.2.3.3.2.4 Aircraft registered in Non - ICAO States

For aircraft registered in any State not a member of ICAO, the operator of non - scheduled flights into Cabo Verde for the purpose of picking up or putting down passengers or cargo, requires prior permission, which must be applied for through diplomatic channels fulfilling the provisions and accompanied by the details referred to in **GEN 1.2.3.3.1**.

1.2.3.4 Request for authorisation for a non - scheduled flight Applications shall be submitted to CIVIL AVIATION AGENCY (AAC) for authorisation, by using the applicable form, available at:

http://siga.aac.cv/ext/fpr

**1.2.4. Private flights**

1.2.4.1 Advance notification of arrival

1.2.4.1.1 Aircraft registered in ICAO States

Aircraft registered in any ICAO State, subject to reciprocal treatment, do not need prior permission to fly into The Republic of Cabo Verde, and the respective flight plan is accepted as adequate in advance notification to the arrival of incoming aircraft. This information must, however be transmitted in such a way that it will be received by the aviation authorities at least two hours in advance of arrival; the landing must be carried out at previously designated international airport.

Permits can be provided for a window of 48 or 72 hours when so requested in the application.

***Note:*** *For reasons of flight safety and compliance with airport regulations, landing permits are required for Private Non - Commercial Flights. Applications must be submitted to AAC in time deemed necessary to allow for a response before the commencement of flight. On weekends, after 16:00 of every working day and national public holidays, urgent application must be addressed to GVACYNYX for the Attention of the Duty Airport Operations Supervisor Tel / Fax: +238 241 1309.*

1.2.4.1.2 Aircraft registered in Non - ICAO States

For private flights by aircraft registered in a non - ICAO State or in any case where reciprocity may not exist, special permission is required in addition to filing of a flight plan, and must be applied for through diplomatic channels.

**1.2.5. Military and Diplomatic Flight**

1.2.5.1 General

For the purpose of these regulations the following aircraft are considered Military and diplomatic Flight.

a) Military Aircraft;
b) Aircraft used in customs and police services;
c) Aircraft engaged in the official carriage of heads of States or Government and respective train of attendants provided that no other passengers are carried;
d) civil aircraft engaged in the carriage of weapons, munitions, and other military equipment;
e) Aircraft under United Nations Organisations services.

Military and Diplomatic Flight are subject to prior permission for overflying the territory of The Republic of Cabo Verde or landing at a Cabo Verde airport.

1.2.5.2 Application Procedures

1.2.5.2.1 Applications regarding overflight or landing of Military and Diplomatic Flight must be submitted to the Ministry of foreign Affairs, through the usual diplomatic channels, for clearance. For the benefit of the clearance expedition, the use of Fax: +238 261 1960 and Email: mnecomunidades@gmail.com, is encouraged.

1.2.5.2.2 The request must reach the Ministry Office at least 3 working days prior to the flight.

1.2.5.2.3 Requests submitted later will only be dealt in well - founded cases such as duly justified urgency, or unexpected heads of State or Government flights, rescue, or humanitarian flights.

1.2.5.2.4 Confirmation of clearance must be received by the applicant before starting the flight.

1.2.5.2.5 The request must contain the following information:

a) State of registry;
b) Owner or aircraft operator, including address;
c) Type and number of aircraft;
d) Registration mark;
e) Radio call sign;
f) Point of departure and final destination;
g) Exact flight route;
h) Information about the crew and passengers;

   i. Name, rank and nationality of the pilot in command, number of the crew;
   ii. Members and passengers for each flight, for military aircraft;
   iii. Name and nationality of the pilot in command, number of the crew members and passengers for each flight, for civil aircraft.

i) Exact purpose of the flight and nature of freight, when carried;
j) Information deemed necessary to support the required assistance on the ground, e.g. amount and type of fuel / oil grades;
k) Declaration that the pilot in command is familiar with the air navigation procedures applied within The Republic of Cabo Verde airspace, and that the aircraft operator will comply with the national legislation regarding indemnities to third parties for damages on the ground.

**1.2.6. Documentary Requirements**

1.2.6.1 Documentary requirements for clearance of scheduled and non - scheduled flight aircraft.

It is necessary that the under mentioned aircraft documents are submitted by airline operators for clearance on entry and departure of their aircraft to and from The Republic of Cabo Verde. All documents listed below in legible handwriting. No visas are required in connection with such documents.

| Required by | General declaration | Passenger Manifest | Cargo Manifest |
|---|---|---|---|
| Airport Authority | Required | Required | Required |

a) One copy of General Declaration and Cargo Manifest is endorsed and returned by Customs, signifying clearance;
b) If no passengers are embarking (disembarking) and no articles are laden (unladen), no aircraft documents except copies of the General Declaration need be submitted to the above authorities.

   ***Note:*** *General Declaration is required only to flights that do not receive handling assistance by the national company. when the flights are attended by the national company, a traffic form that replaces the general declaration and the passenger manifest is required.*

1.2.6.2 Documentary requirements for clearance of private flight aircraft.

Applications must obtain the following information to the required flight plan:

a) Name of aircraft, owner / operator and full address;
b) Type of aircraft and registration mark;
c) Date and time of arrival and departure from the airport;
d) concerned itinerary;
e) Purpose of the flight and nature of cargo when carried must follow the ICAO standard format as set forth in the relevant appendices to ICAO Annex 9 and are acceptable when furnished in English and completed;
f) Any other relevant information such as the amount and type of fuel required and special / specific handling requirements.

**1.2.7. Public health measures applied to aircraft**

1.2.7.1 All inbound aircraft from Africa including aircraft operating on domestic flights are required to perform a disinfection

operation before landing at Cape Verde airports.

The record of this operation on the general declaration (according to ICAO Annex 9, chapter 2, paragraph 2.23 and 2.24) or the attestation on the cargo manifest by the competent airport health control of origin of the flight shall be accepted by the local airport authorities as evidence that effective disinfecting has been carried out.

Should disinfecting not have been previously carried out for any reason, the pilot when in radio contact with Sal control, must advise that disinfecting has not been carried out and request it to be done.

Occasionally airport authorities may require additional disinfecting to be performed by competent airport personnel just after landing. Should this occur pilots / operators are requested to give strict instructions to their crew to facilitate the operation and avoid any inconvenience or delay to the flight.

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